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REQUEST

1. The Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPd) to issue an opinion on the “Draft decree-law that amends Decree-Law No. 176/2003, of August 2, which defines and regulates protection in the event of family burdens within the family protection subsystem – MTSSS – (Reg. DL 166/XXIV/2025).”

2. The request made and this opinion fall within the attributions and competencies of the CNPD, as an independent administrative entity with authority powers for the control of personal data processing, conferred by paragraph c) of No. 1 of Article 57, combined with paragraph b) of No. 3 of Article 58 and with No. 4 of Article 36, all of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (General Data Protection Regulation - GDPR), in conjunction with the provisions of Article 3, No. 2 of Article 4, and paragraph a) of No. 1 of Article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order.

ANALYSIS

3. The present request for an opinion refers to the “Draft decree-law that amends Decree-Law No. 176/2003, of August 2, which defines and regulates protection in the event of family burdens within the family protection subsystem – MTSSS – (Reg. DL 166/XXIV/2025).”

4. More specifically, the Petitioner seeks an opinion on whether “Regarding the amendment to No. 5 of Article 45-A of Decree-Law No. 176/2003, of August 2, concerning the attribution of social benefits, clarification is requested on the possibility of providing for tacit consent, that is, to know whether it would be possible to foresee that if the beneficiary does not wish to consent to the interoperability of data for the purpose of granting prenatal family allowance, there must be an express refusal in this regard at the time of consultation.” Thus delineated the issue,

5. The conditions applicable to consent are, in general, provided for in Articles 4 No. 11, 6 No. 1, paragraph a) and 7 of the GDPR, as material elements of lawfulness for the processing of personal data. To that extent, for consent to be a lawful basis for data processing, it must stem from a genuine manifestation of the free will of the data subject - a prerequisite condition, and not merely ancillary for the compliance of that processing - as well as from the fact that the data subject has effective/real control over the same.

6. The crucial role of consent - and its fundamental legal regime - for data processing is highlighted, from the outset, in Articles 7 and 8 of the Charter of Fundamental Rights of the European Union (CDFUE), where it is stated, respectively, that “Everyone has the right to respect for their private and family life, their home and their communications.”, and that “Everyone has the right to the protection of personal data concerning them. 2. Such data must be processed fairly, for specified purposes and with the consent of the data subject or on another legitimate basis provided for by law. Everyone has the right to access data concerning them and to obtain their rectification.”

7. Thus, as stated by the European Legislator, consent must be free, specific, informed, and unambiguous, concepts that, constituting evaluative coordinates, require reflection in the concrete processing and respect for the delineation of their particular dimensions.

8. The freedom of consent presupposes a true choice, an autonomous determination and control of the data subjects regarding their rights. As a corollary of this principle, the data subject cannot be coerced, in any way, to give their consent, nor suffer any negative consequences in the event of not consenting to a certain processing that concerns them.

9. In other words, consent can never be free if it is not capable of being refused or withdrawn without detriment to the person exercising it, or if it is obtained under any form of pressure or direct or indirect influence capable of affecting the core of the data subject's will, as well as if it can be confused with matters that are not available or arise from processing that finds its legal basis in another cause, thereby distorting the content of the declaration. In summary, if the full volitional link is disturbed or distorted, the freedom to freely consent will be sacrificed.

10. For this reason, in this sense, consent will also not be free if, in the contextual set of informative elements to be provided to the declarant, such confusion serves a false representation of the data

subject who may have consented based on purposes that are not within the universe of ends to which that consent is actually intended.

11. Moreover, it is the responsibility of the data controller to demonstrate the conditions of validity of the provision of consent, namely that, in the processing in question, it is possible to withdraw or refuse consent without the data subject being harmed, for example, without there being a negative or qualitative consequence regarding the consideration on which it may eventually rest.

12. It is based on these premises that, in the provision of consent, the factual/concrete circumstances in which it may be granted must be assessed, and special attention is reserved for contexts of power imbalance, situations in which (to the extent that it is conceived that the situation is not significant enough to genetically impair the use of that basis), the burden of guaranteeing the declarative freedom of the data subject must be borne.

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reinforced and, unequivocally, detached from any harm or direct influence on the will to consent, e.g., suffering the holder from any pressure or influence in this sense, or being diminished in obtaining a benefit.

13. Consent cannot, therefore, be conditional.

This means, e.g., that consent associated with the acceptance of general conditions or with an execution or provision that is not necessary for those purposes must, also, be disregarded.

14. In simple terms, the processing of personal data for which consent is requested cannot serve as a direct or indirect counterpart for a consideration nor can consent be a subordinating element thereof, under penalty of eliminating, again, the concept of freedom from which we started.

15. Another important element shaping the notion of freedom of consent is what is commonly referred to as granularity. In practical terms, in the case where multiple processing operations are involved for more than one purpose, data subjects must be able to choose which purposes they accept, and not be placed in the position of consenting “in bulk,” which would also undermine the specificity and corresponding freedom outlined above.

16. This last requirement should be read in conjunction with the specificity of consent, constructed in such a way as to ensure effective control and transparency of the data in relation to its holder, i.e., in specifying consent based on (or for each of) the purposes of processing, and in the

clear separation between the information related to the obtaining of consent for specific data processing activities and the information that may be related to it, to be executed considering the

aforementioned granularity.

17. Specific consent must, therefore, only be obtained when data subjects are specifically informed of the intended purposes for the use of their data.

18. To specify what has been said, the consent information must contain, at a minimum, the identity of the data controller, the purpose of each of the processing operations for which consent is sought, and what type of data will be collected and used, and which.

19. Correspondingly, a set of reflex rights must be guaranteed, such as the right to withdraw

consent, and the manner of doing so, the provision of information about the use of data for automated decisions, in accordance with Article 22, paragraph 2, letter c), when applicable, and also about the possible risks of data transfers, as provided in Article 46, all of the GDPR.

20. Likewise, if the intended consent can be invoked by multiple data controllers, or if the data can be transferred or processed by other data controllers who wish to invoke the original consent, these must be identified.

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21. Regarding the manner of providing information to materialize the conditions of consent, it is required that data controllers use clear and informal language, easily understandable for the average citizen, particularly for the specific data subject recipients, easily accessible, and that allows distinguishing the purposes and the manner in which their data will be processed, clearly separating them from other

potential matters. Additionally, information about the plurality of rights that assist them, the manner and location of their exercise, as well as, naturally, who the data controllers are and their contact points.

22. For all these reasons, it will be required that the data subject must always act deliberately to consent to the processing of their data, as an expression of a “clear affirmative action,” as stated in Article 4,

paragraph 11 of the GDPR, thus being considered a foundation capable of sustaining personal data processing.

23. Considering this strict regime, it will be concluded that consent will not be considered valid if it is reduced to the use of pre-checked options for adherence, or if the silence or inaction of the

holder is attributed a positive declarative content.

24. Rather, as the GDPR expresses right at its Article 4, paragraph 111, the act must result from an explicit manifestation, allowing for the demonstration of its

validity specified by the data controller

- a burden that, as seen, materially falls upon them - and the controller must also be able to demonstrate

that consent was obtained from the data subject, an obligation that persists, in this regard, for as long as

the respective processing lasts.

25. In fact, without the need for extensive constructions, Article 7 of the GDPR states this, setting forth a set of additional conditions for the valid obtaining of consent.

26. As mentioned, the foundation of personal data processing on the premises of consent as a volitional and available act also implies, as a counterpoint, a fundamental aspect: the right to withdraw it.

27. As a reflex value equivalent to the granting of consent, its withdrawal must adhere to the same criteria of clarity and immediacy, as well as the others outlined above, and can be exercised at any time, without detriment to the holder or without implying an impossibility in the execution of provision, which would immediately demonstrate that, genetically, the consent would be tainted with invalidity.

Even if it were deemed that the defect existed only regarding the withdrawal of consent, non-compliance with the GDPR in this regard has the potential to affect all processing based on that foundation.

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11) "Consent" of the data subject, a manifestation of will, free, specific, informed and explicit, by which the data subject data is accepted, through a declaration or unequivocal positive act, that the personal data concerning them shall be subject to processing;" [bold ours]

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28. In accordance with the above, and under the requirements of informed consent and in accordance with the principle of transparency, it must be expressly and clearly stated the right to withdraw consent as information to the data subject prior to them giving their consent, as this is a fundamental element for the exercise of the rights of the data subject and for the control and management of processing based on their will.

29. Finally, the data controller may not transition from consent as a basis for other grounds provided for in Article 6 of the GDPR nor may they "take advantage of it" for purposes other than those that justify the use of this foundation for processing.

CONCLUSION

30. In terms and with the grounds presented, the CNPD concludes that consent, as a lawful basis for the processing of personal data, must always constitute a "manifestation of will, free, specific, informed, and explicit," to be carried out through a declaration or unequivocal positive act, thus not allowing for tacit consent, and it must also be legislatively provided for the right to withdraw consent, offering a regime that grants it effectiveness and guarantee, without any detriment to the exerciser.

Lisbon, April 22, 2025

Signed by: JOSÉ CARLOS VEGAR ALVES VELHO

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